KIFAYAH

TERMS OF SERVICE & PRIVACY POLICY

Mobile Application and Website
Tagline: “Bachat Bhi, Sahulat Bhi”

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Important notice
This document is a business-ready policy template for Kifayah, an online grocery service intended to operate in Pakistan. It is not a legal opinion and does not certify compliance with every law or regulatory requirement. Before publication, Kifayah should have Pakistani legal counsel review it, complete all bracketed details, verify its actual data practices and vendor contracts, and adapt it to the provinces and territories in which it operates.

PART A — TERMS OF SERVICE

1. Introduction and Acceptance

These Terms of Service (“Terms”) govern access to and use of Kifayah’s websites, mobile applications, customer support channels and related online grocery services (collectively, the “Platform”). “Kifayah”, “we”, “us” or “our” refers to [insert full legal entity name], with its registered office at [insert registered address].

By creating an account, placing an order, or using the Platform, you agree to these Terms and the Privacy Policy in Part B. If you do not agree, do not create an account or use the Platform. If you use the Platform on behalf of another person or organisation, you confirm that you are authorised to do so.

The Platform is intended for individuals legally capable of entering into a binding contract. If you are under the age of majority applicable to you, use the Platform only with the involvement and permission of a parent or legal guardian.

2. Services, Product Information and Availability

Kifayah provides an online marketplace and ordering interface for grocery and household products, which may include fresh produce, dairy, meat, pantry items, bakery products and other goods. Product availability, assortment, delivery areas and service hours may vary by location and operational capacity.

We take reasonable care to display accurate descriptions, images, quantities, prices and product information. Images are illustrative where stated. Fresh goods may naturally vary in size, colour, shape or weight. Where products are sold by variable weight, the final amount may differ from an estimate; any material adjustment should be disclosed through the order or checkout process.

We may correct errors, update listings, limit quantities or withdraw products. If an item becomes unavailable after an order is placed, we may contact you to approve a substitute, remove the item and adjust the total, or cancel and refund the affected item. We will not knowingly substitute a materially different product without your approval.

3. Account Creation, Security and Verification

3.1 Registration

Some Platform features require an account. You may be asked to provide information such as your name, mobile number, email address and delivery address. You agree to provide information that is accurate and to update it when it changes.

3.2 Mobile number and OTP authentication

Kifayah may verify a mobile number using a one-time password (“OTP”), verification code, automated call or another authentication method. An OTP is intended for the account holder and must not be shared with another person. OTPs may expire and may be subject to attempt limits. Successful OTP verification confirms access to the supplied mobile number; it does not necessarily verify every detail of your identity.

3.3 Account security

You are responsible for keeping your device, account credentials and verification codes secure, and for activity carried out through your account, except to the extent caused by Kifayah’s own breach or negligence. Notify us promptly at [insert security contact email/phone] if you suspect unauthorised access, loss of your device or misuse of your account.

3.4 Account controls

We may apply reasonable verification, fraud-prevention or security checks; temporarily restrict suspicious activity; request additional information where lawful and necessary; or suspend an account for material breach, suspected fraud, abuse or risk to customers or the Platform. Where practicable and lawful, we will provide a reason and a way to contact support. You may request account closure, subject to outstanding orders, legal retention duties and dispute handling.

4. Orders, Prices and Payment

An order submitted through the Platform is an offer to purchase the selected products. An order confirmation or acknowledgement does not necessarily mean that every item is finally accepted if stock, payment authorisation or delivery checks remain outstanding. The order is accepted when Kifayah confirms acceptance through the Platform or another stated channel.

Prices and applicable taxes or charges will be shown before you place the order, to the extent required and supported by the checkout flow. Delivery fees, express surcharges, minimum order values and promotional conditions may apply and will be displayed before confirmation. Promotions cannot be combined unless expressly stated.

Available payment methods may include cash on delivery (“COD”), bank or card payments, mobile wallets such as JazzCash or Easypaisa, or other payment services shown at checkout. Payment processing may be handled by third-party providers. Kifayah does not ask you to disclose your full card PIN, wallet PIN or OTP to a rider or customer support representative.

For COD orders, payment is due at delivery. For prepaid orders, payment is subject to successful authorisation or confirmation by the relevant payment provider. If a payment fails, is reversed or is not confirmed, we may pause or cancel the order and notify you.

5. Delivery, Inspection and Failed Deliveries

Delivery is available only in areas displayed as serviceable at checkout. Delivery estimates and time slots are estimates, not guarantees, and may be affected by traffic, weather, safety conditions, stock availability, public holidays or events beyond reasonable control.

You must provide a complete delivery address and a reachable contact number, and arrange for an authorised person to receive the order. The recipient may be asked to confirm receipt. For perishable or temperature-sensitive goods, please inspect the order promptly and report quality or temperature concerns within the time stated in Kifayah’s Return and Refund Policy.

If no authorised recipient is available, the address is incorrect or the customer cannot be reached after reasonable attempts, the delivery may be marked unsuccessful. Any redelivery charge must be disclosed before it is applied and must comply with applicable law and the published Delivery and Shipping Terms. No charge will be applied where the failure is attributable to Kifayah or its delivery partner.

6. Cancellations, Returns and Refunds

Order cancellation, returns, replacements and refunds are governed by Kifayah's separately published Return and Refund Policy, which forms part of these Terms. That policy will explain the applicable reporting windows, evidence requirements, exclusions, inspection process, refund method and expected processing time.

Nothing in these Terms removes or limits a consumer right that cannot lawfully be excluded. If a term in the Return and Refund Policy conflicts with mandatory applicable law, the law prevails.

7. Customer Responsibilities and Prohibited Conduct

You agree not to: (a) provide false or misleading information; (b) use another person's account without authority; (c) interfere with Platform security or availability; (d) attempt unauthorised access to systems or data; (e) use the Platform for unlawful, fraudulent or abusive activity; (f) submit malicious code or automated requests that disrupt the service; or (g) misuse promotions, refunds or payment methods.

You must comply with applicable laws and treat delivery personnel, vendors, support staff and other users respectfully. Kifayah may investigate credible reports of misuse and take proportionate action.

8. Third-Party Integrations and Services

The Platform may connect to third parties, including payment gateways, banks, mobile wallet providers, OTP/SMS providers, analytics providers, cloud or hosting providers, mapping services, customer-support tools and logistics or delivery partners. These providers may process information needed to perform their services.

Third-party services may be governed by their own terms and privacy notices. Kifayah is not responsible for independent services outside its reasonable control, but we will take reasonable steps to select and manage providers appropriately and to address issues arising from our own instructions, contracts or conduct. A third-party provider's terms do not override mandatory rights under applicable law.

9. Intellectual Property

The Platform, including its software, layout, branding, text, graphics, product catalogue presentation and other content owned or licensed by Kifayah, is protected by applicable intellectual-property laws. You may use the Platform for personal, lawful shopping purposes only. You must not copy, modify, distribute, reverse engineer or commercially exploit Platform content or software except where permitted by law or with our written permission.

Product names, logos and marks belonging to third parties remain the property of their respective owners.

10. Service Changes, Suspension and Termination

We may update, suspend or discontinue all or part of the Platform for maintenance, security, legal, commercial or operational reasons. We may suspend or terminate access where reasonably necessary due to breach, fraud, security risk or legal requirement. We will take reasonable steps to minimise disruption and communicate material changes where appropriate.

You may stop using the Platform and request account closure through [insert account deletion route/support contact]. Clauses that by their nature should continue after closure—including payment obligations, dispute provisions, intellectual property, lawful retention and liability provisions—will continue to apply.

11. Disclaimers and Limitation of Liability

The Platform is provided with reasonable care and skill, subject to applicable law. We do not guarantee uninterrupted or error-free availability. To the extent permitted by law, Kifayah excludes implied warranties that may lawfully be excluded. Nothing in these Terms excludes liability for fraud, wilful misconduct, death or personal injury caused by negligence, or any other liability that cannot lawfully be excluded or limited.

To the extent permitted by applicable law, Kifayah will not be liable for indirect or consequential loss that was not reasonably foreseeable. Any other limitation must be interpreted narrowly and must not reduce mandatory consumer protections. This clause does not affect your rights to remedies for defective, unsafe, misdescribed or undelivered goods under applicable law.

12. Complaints, Disputes and Governing Law

For order, payment, delivery, privacy or account complaints, first contact Kifayah at [insert support email], [insert phone/WhatsApp] or [insert postal address]. Please include your order reference and a clear description of the issue; do not send passwords, OTPs or full payment-card details.

We will acknowledge and review complaints within a reasonable time and seek a fair resolution. Where a dispute cannot be resolved informally, it may be referred to the competent courts or legally recognised consumer forum having jurisdiction under applicable Pakistani law, subject to any mandatory venue or consumer-protection rules.

These Terms are governed by the laws of the Islamic Republic of Pakistan, including applicable federal and provincial or territorial laws. Nothing in this clause prevents a consumer from approaching a forum or authority that has mandatory jurisdiction under applicable law.

13. Changes to These Terms

We may revise these Terms to reflect changes in our services, business operations, security practices or legal requirements. We will update the “Last updated” date and, where changes are material, provide notice through the Platform or another reasonable channel. Continued use after the effective date of revised Terms constitutes acceptance only to the extent permitted by law. If you do not agree, stop using the Platform and contact us about any active order or account.

PART B — PRIVACY POLICY

14. Who We Are and Scope of This Policy

This Privacy Policy explains how [insert full legal entity name] (“Kifayah”, “we”, “us” or “our”) collects, uses, stores, shares and protects personal information when you use the Kifayah website, mobile applications, customer support and delivery services. It applies to customers, prospective customers and individuals who interact with our Platform.

Kifayah’s privacy contact / Data Protection Officer (if appointed): [insert name or role], [insert privacy email], [insert postal address]. Do not publish a personal contact name until the appointment and contact details are confirmed.

15. Information We Collect

15.1 Personal and account information

- **Identity and contact details:** name, mobile number, email address and account identifiers.
- **Authentication and security data:** OTP delivery and verification status, login timestamps, device/session identifiers and security logs. We do not need your wallet PIN or full card security credentials to verify an account.
- **Order and transaction data:** products ordered, quantities, prices, order history, delivery instructions, payment status, refunds, complaints and customer-service communications.
- **Delivery information:** delivery address, address notes, recipient name or contact number, and delivery confirmation information.

15.2 Geolocation and location information

With your device permission, the Platform may collect precise or approximate geolocation to identify service availability, estimate delivery, help a rider locate the delivery point or improve address accuracy. You may be able to enter an address manually or disable location permission in your device settings; some location-dependent features may then be unavailable or less accurate. We do not intend to track your precise location continuously when the app is not being used for a location-related feature.

15.3 Analytics, device and usage information

We may collect technical and usage information such as IP address, browser or app version, device type, operating system, language, pages or screens viewed, searches, clicks, session duration, crash reports, approximate location derived from IP, referral source and diagnostic logs. Cookies, SDKs or similar technologies may be used for essential operation, security, preference storage, performance measurement and analytics. Where required, non-essential technologies will be used only after obtaining the appropriate consent or choice.

15.4 Sensitive information

Please do not submit sensitive personal information unless it is necessary for a specific support or legal purpose. Kifayah does not intentionally seek to collect biometric data, health information or other sensitive categories for ordinary grocery ordering. If such information is incidentally provided, we will handle it only as necessary and in accordance with applicable law.

16. Why We Use Information

We use personal information for purposes connected with operating and improving Kifayah, including:

- creating and managing accounts, verifying mobile numbers and authenticating sessions;
- processing orders, payments, substitutions, delivery, returns, refunds and customer support;
- checking serviceability, routing deliveries and communicating delivery updates;
- preventing fraud, abuse, unauthorised access and payment disputes;
- maintaining records, accounting, audit trails and responding to legal obligations or lawful requests;
- understanding Platform performance, diagnosing errors, improving features and measuring service quality;
- sending service messages and, where permitted, marketing or promotional communications; and
- protecting the rights, safety, property and legitimate business interests of customers, staff, partners and Kifayah.

We will not use personal information for a materially different purpose without providing an appropriate notice and, where required, obtaining consent or another valid legal basis.

17. Legal Grounds and Choice

Depending on the circumstances and applicable law, we process information because it is necessary to perform a contract or take steps requested before a contract; to comply with legal obligations; to protect users and prevent fraud; to pursue legitimate operational interests that do not override applicable rights; or because you have given consent. Where processing relies on consent, you may withdraw it for future processing, subject to legal or operational limits. Withdrawal does not make earlier processing unlawful.

You may opt out of promotional messages using the unsubscribe mechanism, where provided, or by contacting us. Transactional messages about orders, account security, refunds or important service changes may still be sent.

18. Sharing and Third-Party Integrations

We may share the minimum information reasonably necessary with the following categories of recipients:

- **Payment providers:** banks, card processors and mobile wallet services (including providers supporting JazzCash or Easypaisa) to initiate, verify, settle or refund payments and manage payment disputes. Payment providers may collect payment details directly under their own privacy notices.
- **Logistics and delivery partners:** riders, courier companies and fulfilment partners receive recipient name, contact number, delivery address, order reference and relevant delivery instructions to complete delivery.
- **Technology and infrastructure providers:** hosting, cloud storage, database, cybersecurity, OTP/SMS, email, mapping, customer-support and analytics vendors who process information on our behalf.
- **Professional advisers and insurers:** lawyers, auditors, accountants and insurers where reasonably necessary.
- **Authorities and other parties:** regulators, law-enforcement bodies, courts or other persons where disclosure is required by law, legal process or necessary to protect rights and safety.

We do not authorise service providers acting on our behalf to use personal information for their own unrelated purposes. We seek appropriate contractual, security and confidentiality safeguards. If a provider acts as an independent controller, its own privacy notice may also apply.

19. International Transfers and Data Location

Some providers may store or process information outside Pakistan. Where personal information is transferred across borders, Kifayah will take steps appropriate to the nature of the information and applicable legal requirements, which may include contractual protections, access controls and vendor due diligence. Contact [insert privacy email] for general information about relevant service-provider categories and safeguards, subject to security and confidentiality limits.

20. Data Retention

We retain personal information only for as long as reasonably necessary for the purposes described in this Policy, including order fulfilment, customer support, accounting, tax and other legal obligations, fraud prevention and dispute resolution. Retention periods may vary by data type and legal requirements. When information is no longer required, we will take reasonable steps to delete it, anonymise it or securely restrict access.

Closing an account does not necessarily result in immediate deletion of all records. Transaction, payment, tax, fraud-prevention or dispute records may need to be retained for a lawful period. We will not retain information indefinitely without a valid operational or legal reason.

21. Security Measures and Data Incidents

Kifayah will maintain reasonable administrative, technical and organisational safeguards designed to protect personal information against unauthorised access, loss, alteration, disclosure or misuse. Measures may include encryption in transit where supported, access controls, staff confidentiality obligations, secure authentication, logging, backups and vendor reviews.

No online service can guarantee absolute security. If we become aware of a personal-data incident, we will investigate, take reasonable steps to contain and remediate it, and provide notifications to affected individuals or competent authorities where required by applicable law. Please report suspected account compromise or privacy incidents to [insert security/privacy contact].

22. Your Privacy Requests and Rights

Subject to applicable law, you may contact us to request access to personal information associated with your account, correction of inaccurate information, deletion or restriction where available, withdrawal of consent, or information about how your data is used and shared. You may also ask us to stop promotional communications.

To protect your account, we may need to verify your identity before acting on a request. We may decline or limit a request where permitted or required by law—for example, where records must be retained for legal, security, accounting or dispute purposes. We will explain the reason where legally permitted. Submit requests to [insert privacy email] with the subject “Privacy Request”.

23. Cookies, SDKs and Analytics Controls

The website may use cookies and similar technologies, while the mobile app may use software development kits ("SDKs"). Strictly necessary technologies support core functions such as login, basket and security. Analytics and optional measurement technologies help us understand usage and improve the Platform. Where required, we will present a consent or preference mechanism for optional technologies. You can also manage cookies through browser settings and app permissions, although blocking essential technologies may affect functionality.

Analytics reports may use aggregated or de-identified information. We will not represent data as anonymous if it can reasonably be linked back to an individual.

24. Children and Family Accounts

Kifayah's Platform is not designed to knowingly collect personal information directly from children who cannot legally consent to the relevant processing. A parent or legal guardian should supervise any use by a minor and provide any required permission. If you believe a child has provided personal information inappropriately, contact [insert privacy email] so we can review the request and take appropriate action.

25. Marketing and Communications

We may send order updates, OTPs, delivery notifications, service announcements and account-security alerts as necessary to provide the service. Promotional messages will be sent only in accordance with applicable law and your communication preferences. You may opt out of marketing at any time, but essential service messages may continue.

26. Changes to This Privacy Policy

We may update this Policy when our services, integrations, data practices or legal obligations change. The revised version will be posted on the Platform with an updated "Last updated" date. If a change materially affects how we use personal information, we will provide additional notice or seek consent where required by law.

27. Contact and Complaints

For privacy questions, requests or complaints, contact: **[insert full legal entity name]**, Attention: Privacy Officer / Data Protection Officer, **Email:** [insert privacy email], **Phone:** [insert phone], **Postal address:** [insert registered address].

You may also have the right to raise a complaint with a competent Pakistani regulator, authority or court where such route is available under applicable law. Kifayah will cooperate with lawful inquiries.

28. Governing Law and Interpretation

This Privacy Policy and the processing it describes are intended to operate subject to the laws of Pakistan and any applicable provincial or territorial requirements. The governing-law and dispute-resolution provisions in Part A apply, subject always to mandatory rights, regulator powers and jurisdiction that cannot lawfully be excluded.

If any provision of these Terms or this Policy is held invalid or unenforceable, the remaining provisions will continue to apply to the extent they can operate lawfully. A failure to enforce a provision is not a waiver of the right to enforce it later.

PUBLICATION CHECKLIST — COMPLETE BEFORE GO-LIVE

- Insert Kifayah's full registered legal name, entity type, registered office and effective/last-updated dates.
- Confirm the actual app and website data flows, including every analytics SDK, cookie, OTP provider, payment gateway, map service, cloud host and logistics partner.
- Confirm whether precise geolocation is collected, when it is collected, and how users can deny or revoke permission.
- Publish working support, privacy and security contact channels and an account deletion/request route.

- Set retention periods by data category and document vendor contracts, access controls and cross-border hosting locations.
- Align this document with the live Return and Refund Policy, Delivery and Shipping Terms, checkout disclosures and actual payment methods.
- Obtain review by qualified Pakistani counsel, including review of applicable federal and provincial/territorial consumer, e-commerce, electronic-transactions, payment, telecom and data-protection requirements.

Last updated: [Insert date]
Document owner: Kifayah — [Insert responsible department / Privacy Officer]
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